

Tentative Rulings
August 7, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

9. *Citibank N.A. v. Flores*, Case No. CIVSB2601711
Defendant's Motion to Quash Service of Summons
8/7/26, 9:00 a.m., S-17

The Court is inclined to **DENY**.

The service of summons is the process by which the court acquires jurisdiction over a defendant in a civil action. (*Borsuk v. Appellate Division of Superior Court* (2015) 242 Cal.App.4th 607, 612.) Service of summons can occur essentially in four manners: (1) personal service [Code Civ. Proc., § 415.10]; (2) substituted service [Code Civ. Proc., § 415.20]; (3) by mail with copy of notice of acknowledgment [Code Civ. Proc., § 415.30]; and (4) by publication if person cannot be served otherwise. (Code Civ. Proc., § 415.50.)

The self-represented Defendant in this collections matter filed this motion asserting that he was not personally served and, generally, that service was improper. As a preliminary matter, the Court notes that the motion was filed pursuant to a *general* appearance, which appears to submit movant to the jurisdiction of the action; so, the motion back be moot in the first place.

More importantly, the proof of service indicates personal service at 4:35 PM on February 2, 2026, by a registered process server. (See POS, filed February 18, 2026.) The service was effectuated at Defendant's home address. (See Flores Decl., ¶13 [confirming residence].) When service is done by a registered process server, there is a rebuttable presumption as to the stated facts. If the presumption applies, then the defendant bears the burden to produce evidence of non-service. (*American Expr. Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390.)

Here, Defendant simply asserts that the POS incorrect. Tellingly, Defendant includes video of the process server "placing documents on the front doormat, taking a photograph, and leaving." (Flores Decl., ¶16.) Thus, it appears that Defendant confirms service but quibbles because it was not handed to him personally and because the description the process server uses to describe him. (Flores Decl., ¶18[incorrect height and weight in POS].)

However, the Code allows that a party "may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address . . . in the presence of a competent member of the household . . ." (Code Civ. Proc., § 415.20 (b).) Thus, even if the description of Defendant is less-than perfect (or, even if it was a *different* member of the household), service appears to have been effectuated.

10. *Velasco Macias v. Lyft Inc., et al*, Case No. CIVSB2519010
Defendant's Motion to Compel Arbitration
8/7/26, 9:00 a.m., S-17

The Court would **CONTINUE** this matter to allow proper briefing.

In this case, a notice of non-opposition to the motion was filed by movant on July 30, 2026. Typically, the Court would grant an unopposed motion, as the failure to oppose acts as a concession to the arguments set forth therein. However, in this case, it appears that Plaintiff electronically filed an opposition on the afternoon of August 6, 2026.

The Court would hear argument on whether there is good cause to consider the late-filed opposition. Presuming good cause for argument's sake, the Court would continue to allow a Reply and proper consideration.

11. *Jefferson v. Warren, et al*, Case No. CIVSB2414011
Defendant County's Motion for Attorneys' Fees and Costs
8/7/26, 9:00 a.m., Dept. S-17

Tentative Rulings

As to Evidentiary Objections: The Court would **OVERRULE** in their entirety.

As to the Motion: The Court would **GRANT** the County's request for attorneys' fees and costs in the amount of \$15,770.16.

Case Summary

This is personal injury litigation. Plaintiff, a minor, alleges that on April 27, 2023, she was waiting at a school bus stop when she was struck by a vehicle driven by Defendant Warren. As such, she filed suit against Defendant Warren and also filed against the County, the State, and the Snowline Joint Unified School District. She initially filed suit on April 29, 2024. Plaintiff filed a First Amended Complaint (FAC) on February 14, 2025, in the light of a demurrer. (Tentative, Feb. 27, 2025 [holding the demurrer moot].) That FAC was subject to a sustained demurrer on July 8, 2025. (Tentative, July 8, 2025.) That ruling allowed thirty days leave to amend. (*Ibid.*)

Relevant here, Plaintiff failed to amend within the allotted timeline, and the County applied *ex parte* on October 23, 2025, for an order dismissing Plaintiff's action for failure to amend. The Court continued the matter to November 5, 2025, to allow further briefing. In the interim Plaintiff attempted to file a Second Amended Complaint (SAC) on October 24, 2025. This filing

was filed *beyond* the leave provided by the Court, and the Court continued the hearing on dismissal in order to allow further briefing on whether to provide relief. (Tentative, Nov. 5, 2025.) At that next hearing on January 27, 2026, the Court *again* continued the matter to provide one Plaintiff with a final attempt to support relief. (Tentative, Jan. 27, 2026.) Finally, on February 6, 2026, the Court granted relief; accepted the SAC; and required an Answer to be filed within twenty days. This ruling was expressly contingent on Plaintiff paying reasonable attorneys' fees related to the various hearings related to the motion to dismiss. (Tentative, Feb. 6, 2026.) The parties were ordered to meet and confer on the amount of the fees at issue. This motion followed.

Analysis

Here, the County moves to recover mandatory attorneys' fees and costs incurred in seeking dismissal of Plaintiff's action pursuant to Code of Civil Procedure section 473(b). The County argues the court granted Plaintiff relief to file an amended complaint based on the declaration of Plaintiff's counsel demonstrating excusable neglect. The County argues as a part of the court's order granting Plaintiff relief, the court found that the County was entitled to its reasonable attorneys' fees and costs under section 473(b). The County argues first that the hourly rates requested are reasonable, which is \$265 for partners, \$245 for associate attorneys, and \$115 for paralegals. Further, the County contends the number of hours spent on the case is reasonable and supported by counsel's time records for services rendered in drafting documents and attending the October 23, 2025, November 5, 2025, January 27, 2026, and February 6, 2026, hearings. The County contends the time spent consisted of ordinary litigation activities in furthering the County's interests in seeking dismissal of the case and as such, were "reasonably expended" in litigating this case.

In her opposition, Plaintiff first contends the subject dismissal was a result of the County's gamesmanship and failing to provide Plaintiff with the opportunity to cure the default in failing to file an amended complaint. Plaintiff further argues the County fails to demonstrate the reasonableness of the requested fees. Specifically, Plaintiff argues the County's billing and accounting records are inadmissible evidence and the records show the appearance of over-staffing and bill padding.

The County replies, arguing the court has already ruled that the County is entitled to recover its reasonable attorneys' fees and costs and Plaintiff cannot relitigate that issue. As to the reasonableness of the requested fee, the County contends Plaintiff waived any issues as to whether the County's hourly rates are reasonable by failing to raise any arguments in her Opposition. The County argues the declarations of counsel along with their billing records is sufficient evidence to determine the reasonableness of its attorneys' fees and costs. As for Plaintiff's request to strike certain hours as they are listed as "unbilled," the County argues, as set forth in the supplemental declaration of Corzano that this is merely due to the timing of the monthly billing. Finally, as to Plaintiff's contention that certain entries reflect duplicative hours, the County cites to cases such as *Premier Med. Mgmt. Sys., Inc. v. California Ins. Guarantee*

Assn. (2008) 163 Cal.App.4th 550, 564, for authority that general arguments that fees claimed are excessive or duplicative are insufficient, and Plaintiff must meet her burden as to specific items challenged with a sufficient argument and citations to the evidence.

The County's request consists of \$494.66 in costs and 56.3 hours billed at counsel's rate of \$245 to 265/hour, as well as 6.4 paralegal hours billed a rate of \$115/hour. The Court finds the requested hourly rates are reasonable given the nature and value of the services rendered. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) As for the requested number of hours, the County motion for attorneys' fees is supported by the declarations along with their attached billing records. The Court finds the requested attorney hours are generally reasonable and supported by the evidence before the court. (*Melnyk v. Robledo* (1976) 64 Cal.App.3d 618, 624–625). Based on the foregoing, The Court grants request for reasonable attorneys' fees and costs of \$15,770.16 pursuant to Code of Civil Procedure section 473(b).
